THE STATE

versus

NKANYISO NDLOVU

And

NDUMISO SIBANDA

And

MPUMUZI DUBE

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 9 0CTOBER 2025 AND 26 FEBRUARY 2026

Assessors: - Mr Mbizo
Mrs Tshuma

Criminal trial

S. Pedzisayi, for the state
T. Mpofu, for the first accused (Ms A Duri*)*
Mr P D Sibanda, for the second accused (Has instruction to stand in for Mr Madzivire for accused 3)

NDUNA J: The three accused appear before the court on a charge of murder as defined by Section 47 of the Criminal Law Code. It is alleged on the 30th day of March 2024, a fight broke out at Egumeni Sports Bar, Makoni Shopping Centre, Bulawayo, in the dead of night. During the course of that fight, the deceased was stabbed with a knife and died as a result of the injuries sustained. The accused persons were subsequently arrested and appeared before this court facing one count of murder. Upon being invited to tender their pleas to the charge, the accused, duly advised by their legal practitioners, pleaded not guilty.

The State's case rested principally on the evidence of Walter Mutungwa, Muziwake Ncube and Sithulisiwe Ncube, who testified to the following

Walter Mtungwa

He testified that on the night of 30 March 2024 he was at Egumeni Sports Bar together with the deceased, Muziwake and Stephen, where they were playing snooker. While they were engaged in the game, the three accused persons emerged involved in an altercation with Crescent. After calm had been restored, the third accused approached the snooker table, picked up a snooker ball and kicked it into the snooker table. Stephen questioned his conduct, prompting the third accused to confront him, leading to yet another altercation. Walter intervened and restrained the confrontation. The deceased also intervened and succeeded in calming the situation before suggesting that they all leave the bar. As they exited, they found the three accused blocking their path.

The accused immediately launched an attack upon them. Walter observed the first accused produce a knife, whereupon he attempted to distract him by waving his jacket before fleeing for his own safety. When he later returned to the scene, he found the deceased lying on the ground having sustained fatal injuries.

Walter maintained throughout his evidence that the accused were the aggressors and denied that the deceased or his companions had attacked the accused first. Although he saw the first accused armed with a knife, he candidly conceded that he did not witness the actual stabbing of the deceased.

Muziwakhe Ncube

He testified that he was in the company of Walter, Stephen and the deceased when the three accused approached the snooker table. The third accused interfered with the snooker game by throwing the balls into the pockets, resulting in an altercation with Walter. The deceased intervened and managed to restore peace before suggesting that they leave the premises. As they exited the bar, the three accused blocked their way. Muziwake testified that the second accused grabbed him, but he managed to free himself and fled. Upon later returning, he found the deceased lying on the ground with injuries to his upper chest and thigh. He immediately informed elders at home about the incident. Like Walter, Muziwake did not witness the fatal stabbing because he had already fled the scene, but he remained adamant that the accused were acting together and were responsible for the attack that resulted in the deceased's death.

Sithulisiwe Ncube

The direct evidence regarding the fatal assault came from Sithulisiwe Ncube, who was the former girlfriend of the first accused and had known all three accused persons for approximately four months before the incident. She testified that she had finished work as a bar lady that evening and was walking near the shopping centre when she observed people running from Egumeni Sports Bar. She recognised the three accused persons.

According to her testimony, the first accused was armed with a shiny knife, the second accused carried a black knife, while the third accused held a stone. She observed the second accused kick the deceased in the face, the first accused stab the deceased in the back with a knife, and the third accused strike the deceased with a stone, causing him to fall. After the assault, the accused fled. As she later walked home, the three accused caught up with her, and she noticed bloodstains on the first accused's checked shirt and on the second accused's white tennis shoes.

She further testified that the area was well illuminated by bright lights, enabling her to observe the incident clearly from a distance of approximately ten metres. She identified the knife carried by the first accused as Exhibit 7 and the knife carried by the second accused as Exhibit 8, and also identified the bloodstained shirt and shoes recovered during the investigations as those worn by the first and second accused respectively. She maintained that she had no reason to falsely implicate any of the accused persons and remained firm under cross-examination that she personally witnessed the first accused stab the deceased.

DEFENCE CASE

Nkanyiso Ndlovu

The first accused, Nkanyiso Ndlovu, testified that he had gone to Egumeni Sports Bar in the company of the third accused. Upon arrival, he found the third accused already involved in an altercation with a group of about seven or eight men near the snooker tables. According to him, he attempted to remove the third accused from the confrontation but was unsuccessful because the group surrounded them. He stated that one of the men produced a knife and, fearing that the third accused would be stabbed, he wrestled the knife away from the assailant. Before he could disengage from the

confrontation, another member of the group struck him on the neck with a bottle, causing him to fall. While he was lying on the ground, the deceased allegedly stood over him, whereupon he used the knife he had taken from the deceased's group to stab the deceased. He maintained that he acted only after being assaulted and in defence of himself and the third accused, disputing the State's allegation that he was the aggressor or that he attacked the deceased without provocation.

The first accused further testified that the second accused only joined the altercation after it had already commenced and was attempting to restrain the fighting. According to him, the second accused merely kicked one of the individuals involved during the commotion and did not participate in any concerted attack upon the deceased. He therefore denied the existence of a common purpose among the accused persons to kill the deceased.

Ndumiso Sibanda

The second accused's defence was that he was not with the first and third accused when the incident began. His position throughout the trial was that he had been drinking elsewhere before arriving at the scene and was therefore not part of the initial altercation inside the bar. He denied pulling the deceased aside, denied blocking the exit together with the other accused, denied carrying or using a knife during the assault, and disputed the evidence identifying him as one of the principal assailants. Although police officers recovered a Columbian knife and clothing from his residence following his arrest, he denied that the recovered knife had been used in the commission of the offence and disputed the allegation that he possessed a knife during the incident. He further challenged the reliability of the identification evidence led by the State witnesses and maintained that he did not participate in the murder of the deceased.

Mpumuzi Dube

The third accused's defence was that his only involvement on the night in question was a separate altercation with Crescent Moyo. He denied assaulting the deceased, denied carrying a stone during the fatal attack, and denied participating in any common purpose to kill the deceased. His defence was reinforced during cross-examination of the

investigating officer and other State witnesses, where it was suggested that the CCTV footage did not clearly depict the third accused participating in the fatal assault and that no weapon or bloodstained clothing linking him to the murder was ever recovered. The third accused accordingly maintained that he neither assaulted nor murdered the deceased and that he had been wrongly implicated in the offence.

When this evidence is assessed together with the evidence given by the accused persons, it clearly emerges that the three attacked the deceased and his friends. The accused themselves admitted that they were involved in the altercation with the deceased and his companions. All they sought to deny was the stabbing of the deceased. However, when their version is considered alongside the evidence of Sithulisiwe Ncube, it becomes apparent that their denial cannot hold water.

APPLICATION OF THE LAW

The evidence adduced by the State is clear, credible and worthy of acceptance. It demonstrates that the accused persons were unnecessarily aggressive on the day in question. Their conduct inside the bar, followed by the continued aggression outside the premises where they blocked the deceased and his companions before attacking them, shows a concerted and deliberate course of conduct.

It was held in *Last Mupfumburi v The State HH 64-15* that sufficiency of evidence is the amount of evidence required for a conviction. This is a matter of law. Once that threshold has been attained, the court has no option but to return a verdict of guilty. The male witnesses testified how they were accosted and attacked by the accused persons. Their evidence was corroborated by the testimony of the accused's girlfriend. The female witness was indeed very credible. There is nothing that detracts from her testimony. She observed the accused stab the deceased and narrated in detail what she witnessed.

The crime of murder with which the accused persons are charged consists of the unlawful and intentional killing of another human being. In *S v Kurongera HH 267/17*, the court opined that:

> "Where there is no expression of such intent the law can infer such an intention from the accused's conduct and circumstances surrounding the commission of the offence and conclude that such an intent existed in accused's mind."

The evidence further establishes that the accused acted in concert in carrying out the fatal assault upon the deceased. They jointly confronted the deceased and his companions inside the bar, continued their aggression after the initial altercation had been resolved, blocked the deceased's exit from the premises, and together launched the attack which resulted in the deceased's death. Their conduct before, during and after the assault demonstrates a shared criminal enterprise.

It is well established that a common purpose need not be the product of prior agreement. It may arise spontaneously from the conduct of the participants. In *S v Safatsa & Ors* 1988 (1) SA 868 (A), the court held that common purpose can arise on the spur of the moment and may be inferred from the facts surrounding the active association of the participants in the furtherance of the common design.

In *S v Makuchete HMA 10-18*, the court stated that the requirements of common purpose are:

1. Presence at the scene of the crime;
2. Knowledge of the criminal act;
3. Intention to make common cause with the actual perpetrator of the crime; and
4. Manifestation of a sharing of a common purpose with the actual perpetrator by performing some act of association with the perpetrator's conduct.

Applying those principles to the facts before this court, all four requirements have been established beyond reasonable doubt. The accused were present at the scene throughout the incident. They were fully aware of the assault being perpetrated upon the deceased. They intentionally associated themselves with one another in attacking the deceased and his companions. Their common purpose was manifested by their collective conduct in confronting the deceased inside the bar, blocking his exit after he attempted to leave, jointly assaulting him with dangerous weapons, and fleeing together immediately after the attack. Whether the fatal stab wound was inflicted by one accused or another is

therefore of no consequence, as each accused actively associated himself with the execution of the common design.

The accused persons have not advanced any viable defence that can avail them. It cannot be said that they set out with the express intention of killing the deceased. However, they armed themselves with dangerous weapons and, having initiated the confrontation, consciously used those weapons during the assault. The first accused stabbed the deceased with a knife, while the other accused actively participated in the attack. Such conduct, involving the use of lethal weapons upon another person, permits the inference that they acted in concert.

Their evidence is weak and does not assist the court in finding in their favour. They admitted being involved in the altercation with the deceased and his companions. Their denial of responsibility for the fatal injuries is contradicted by the credible and corroborated evidence led by the State. The knife used in the commission of the offence was recovered, and the evidence adduced establishes beyond reasonable doubt that the accused acted jointly in the commission of the offence. The State has proved all the essential elements of murder, both directly and through the doctrine of common purpose.

The court is therefore satisfied that the accused persons acted with a common purpose in the unlawful killing of the deceased.

They are accordingly found guilty of the murder of the deceased.

Sentence

In *S v Vilakazi 2009 (1) SACR 552 (SCA) at para 58*, the court said the following:-

> "In cases of serious crime the personal circumstances of the offender, by themselves, will necessarily recede into the background. Once it becomes clear that the crime is deserving of a substantial period of imprisonment the questions whether the accused is married or single, whether he has two children or three, whether or not he is in employment are in themselves largely immaterial to what that period should be, and those seem to be the kind of flimsy grounds that *S* v *Malgas* case said should be avoided. But they are nonetheless relevant in

another respect." It is also important to consider whether the accused can offend again and what chances if any are there of his rehabilitation.

It is ultimately a court's task to achieve a balance against all the competing factors to arrive at a just sentence. The accused are indeed fairly young persons. But what is disheartening is that the courts are now exclusively dealing with young first time offenders such that we have to ask the question; is it being fair and judicious to continue treating them with leniency? Clearly we need to think again on this aspect. Young persons are committing serious crimes of murder such that it is more persuasive that the courts much change their attitude in their sentencing. They are now invariably moving around armed with lethal weapons such a sophisticated knives without any hesitation. They are further not slow in using the said knives. The courts must start imposing such sentences as would frighten them without any mercy; for treating then leniently on the basis of their youthfulness has not helped at all.

The sentences of courts must be of assistance in curbing crime. This is lost when the courts use it as a basis to treat the youths with leniency when they is no reciprocity from the said youths.

In this case, the accused killed the deceased for no apparent reason. It was submitted in mitigation that the accused are providers and care givers to their minor children. However, no evidence was placed before the court upon which it could properly rely in accepting that submission or in treating it as a mitigating factor. There is therefore no evidential basis upon which the court can attach any significant weight to the assertion that the accused are caregivers to minor children when determining an appropriate sentence.

In *S v Chetty 2013 (2) SACR 142 (SCA)* the court persuasively stated that a primary caregiver is understood to be someone who lived with the child and did normal parenting duties for the child. It is that one cannot just stand up during sentencing and claims to be a child care giver. The children ought to testify in order for the court to find for the accused. This is not a question of having minor children; it is looking after the children. It ought to be proven. And it has not been established as such.

The court is of the very firm view that the accused deserved a punishment for their conduct. There are no extra ordinary facts to justify a move away from the severe

sentence. Our society rightly regards murder, as a particularly horrifying manifestation of the crime.

The accused have been custody for a period of time which seems to be around two years generally. A better approach in my view is that the period in detention pre-sentencing is but one of the factors that should be taken into account in determining the effective period which the court will impose.

The court considers a sentence of twenty-five years imprisonment to be appropriate in the circumstances of this case. In arriving at the effective sentence, the court has taken into account the period of approximately two years which the accused have spent in pre-trial custody awaiting the finalisation of this matter. That period is accordingly credited towards the sentence imposed. Each accused is therefore sentenced to twenty-five years imprisonment, of which two years are deducted in recognition of the time spent in custody on remand, leaving an effective sentence of twenty-three years imprisonment for each accused.

The accused are accordingly sentenced each to 23 years imprisonment

The Columbian knife is forfeited to the state for destruction

National Prosecuting Authority, state's legal practitioners
Pundu & Company, 1st accused's legal practitioners
Ncube and Partners, 2nd accused's legal practitioners
Mashayamombe & Company Attorneys, 3rd accused's legal practitioners